Where Justice Gets Stuck

Findings from 80.9 million Indian lower-court cases filed 2010-2018, with 2026 pendency for context. Ritik Yadav, November 2026.

India's district and subordinate courts held 4.99 crore pending cases in July 2026, up from 4.77 crore in 2025. This project asks where and why those cases stall. The headline is a measurement point: the usual average, taken from closed cases, understates delay 2.5 times, because the slowest cases are the ones still open. In June 2026, 21,411 judicial officers were working against 30,825 sanctioned posts, and in this data a judge stays a median 331 days in one post, less than the median case takes to close. Case-level data ends in 2018, so these findings describe that period rather than courts today.

80.9M
cases analysed, 2010-2018

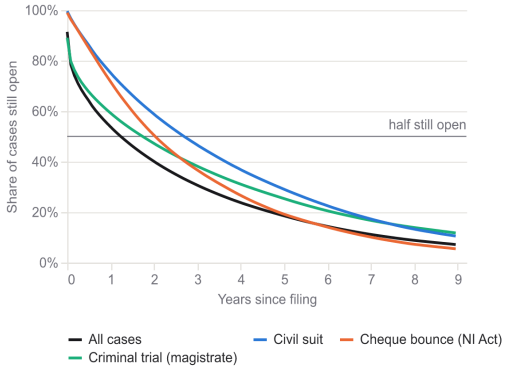
2.38 crore
still open at the end of 2018

450 days
median to close, open cases counted (closed cases alone: 181)

19%
of cases still open after five years

Finding 1

How long does justice take?

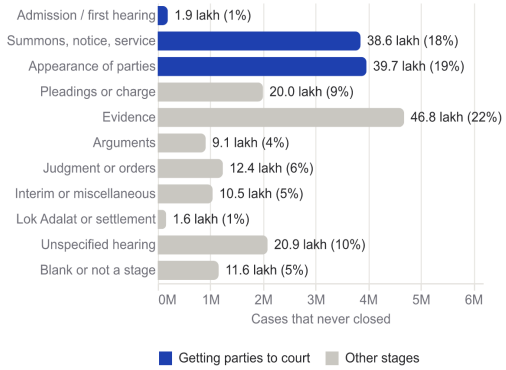


Half of all cases take more than 450 days to close once open cases are counted. Closed cases alone say 181 days, which understates it 2.5 times. 19% of cases are still open after five years. Civil suits take a median of 983 days, while bail takes 9.

Read with care: Older filings look slower (1,138 days for 2010 against 228 for 2018), probably because early digital records lean towards long-running cases. Not counting transfers as closures raises the median to 512 days.

Finding 2

Where do cases get stuck?

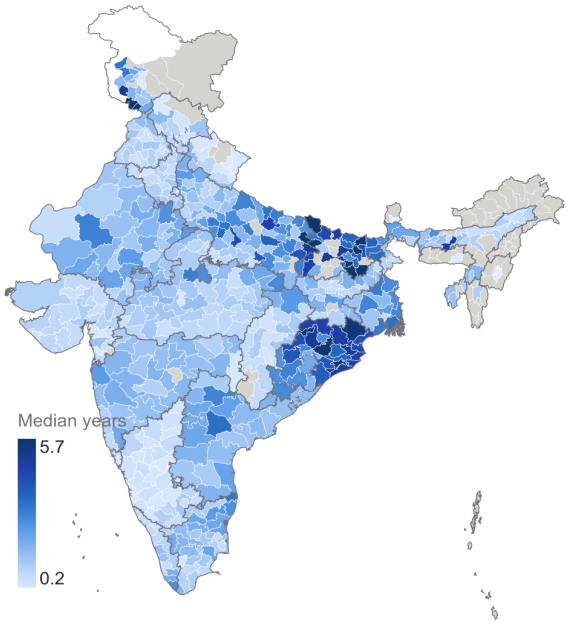


38% of cases that never closed (80.2 lakh) were last listed for admission, summons, notice or appearance: the steps that get parties to court. Evidence is the largest single stage at 22%. Criminal cases sit in those early steps more often than civil ones (41% against 30%).

Read with care: Stage comes from the free-text purpose of the last listing, which is not always the furthest point a case reached: an appearance can recur mid-trial. 5% of labels say nothing about the stage and get their own bar.

Finding 3

Does your district decide your speed of justice?

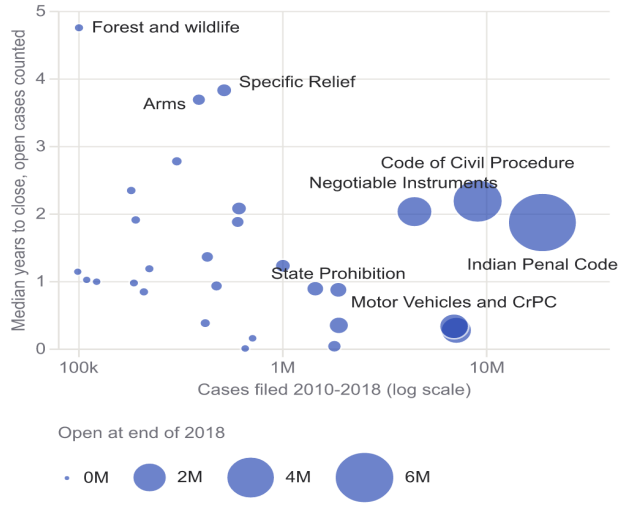


Yes: a slow district (90th percentile) takes 6.5 times as long as a fast one (10th percentile), 1,200 days against 184. States explain 67% of the variation after adjusting for case mix, so districts matter but states matter more. Only 55 of 558 districts disposed of as many cases as were filed in 2016-18.

Read with care: 9 districts (6 in Bihar, 2 in Uttar Pradesh, 1 in Assam) are left off because even bail appears not to close there, which suggests missing closure records rather than slow courts. Without its flagged districts, Bihar's median falls to 4.2 years. Per-lakh figures use 2011 population, and court complexes serve people from outside their district.

Finding 4

Which laws clog the system?

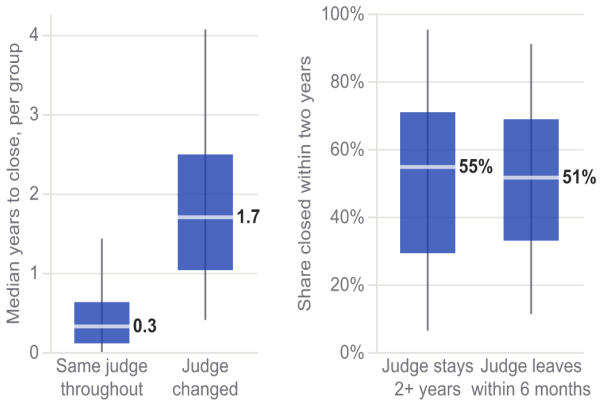


The Indian Penal Code holds the most open cases (75.8 lakh), followed by the Code of Civil Procedure (39.5 lakh). Among large groups, Specific Relief Act cases are slowest at a median 3.8 years. Section 138 (cheque bounce) is the largest single section by volume, with 19.6 lakh NI Act cases filed 2010-2018 still open at the end of 2018 (8% of all open cases). That fits the Supreme Court's 35.2 lakh for end-2019, which also counts older cases, but this data alone cannot confirm it.

Read with care: 18% of cases have no act record, mostly early filings, so act volumes are undercounts. Counting cases by type label too raises the NI Act figure to 20.1 lakh.

Finding 5

Do judge transfers slow cases?

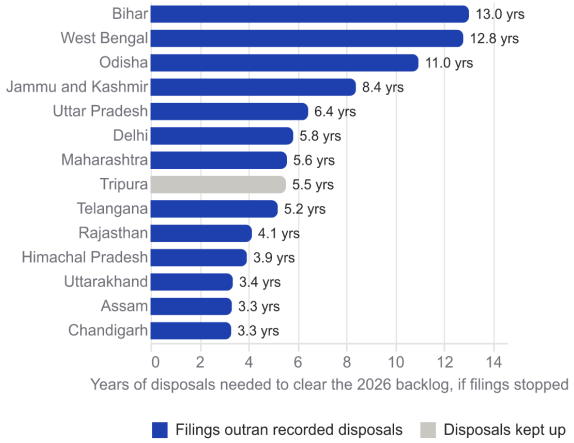


Much less than it first appears. Cases that changed judges took a median 516 days against 13, and matched trials still differ by 464 days, but slow cases simply have more time to see a transfer. A fairer test uses what a slow case cannot influence: how long the judge had left at filing. With a judge about to leave, the share closed within two years was 2.9 points lower in magistrate trials and 5.4 points lower in sessions trials.

Read with care: A real but modest effect, within matched district, case type and year groups. Judge links cover only cases DDL flags as criminal, and tenure ends can still cluster with other changes in a court, so this is an association rather than proof of cause.

Also tested

When would the backlog clear?

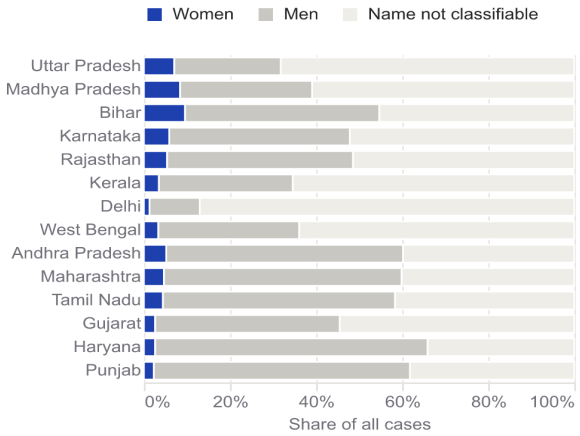


On 2016-18 flows, it would not: filings outran recorded disposals in 28 of 31 states. Even if filings stopped, the 2026 backlog equals 4.6 years of disposals nationally, led by Bihar (13.0), West Bengal (12.8) and Odisha (11.0).

Read with care: This is a scenario and not a forecast. It applies 2016-18 flows to 2026 pendency, and DDL omits disposals of pre-2010 cases, so 'never clears' is overstated. The ranking between states is sturdier than any single figure.

Also tested

How visible are women in court?



Women are 29% of named petitioners and 15% of defendants, but only about 10% of advocates. Family cases are the exception among litigants, with women as 52% of petitioners.

Read with care: Gender is predicted from names and counts cases, not people, so one busy advocate counts many times. Only 13% of defendants' advocates and 46% of petitioners' advocates have a classifiable name.

How far to trust this

Data quality and method

48 data-quality rules ran on every case; 36 found failures, each logged with severity, samples and treatment. **17,964 of 29,856 raw act labels** were standardised into 60 acts.

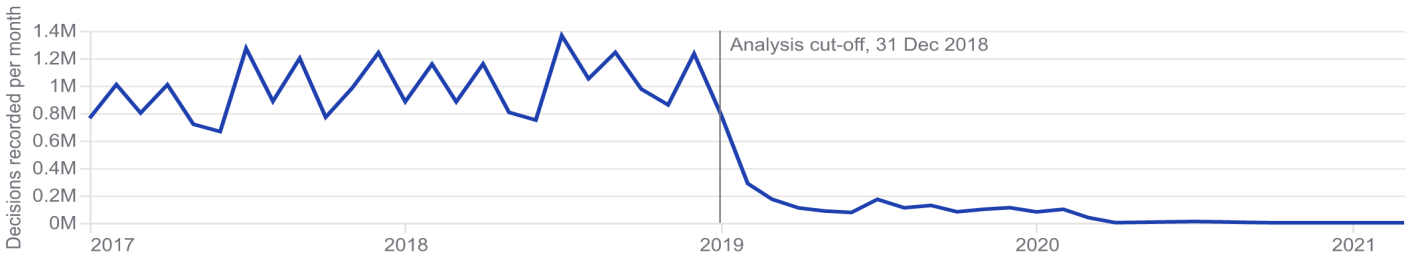
One cut-off. Recorded decisions fall by about 90% in early 2019 because only some courts were collected again later. Every case is treated as open on 31 Dec 2018 unless decided by then, so no court gains from later collection.

Coverage. Rows per year grow 3.2x from 2010 to 2018 as records went digital, so flow rates use 2016-18 only. Cases filed before 2010 are absent, so backlogs and disposals are understated. Five states and UTs have no separate data. Two independent checks support the picture: DDL's open cases by state track NJDG's 2026 pendency shares (correlation 0.98), and states slow here also hold NJDG's oldest cases (rank correlation 0.63, 24 large states).

Survival analysis. Open cases count towards delay until the cut-off, using Kaplan-Meier curves computed in SQL over all rows and tested against the lifelines library.

Limits. These are associations. Stage and act come from free-text labels, gender from a name-based model, and population from 2011.

Why every result uses one cut-off: decisions recorded per month fall sharply after January 2019



Sources. Development Data Lab eCourts data (CC BY-NC-SA 4.0, non-commercial); NJDG via Lok Sabha Unstarred Question 3371, answered 7 Aug 2026; In Re: Expeditious Trial of Cases under Section 138 NI Act (Supreme Court, 16 Apr 2021); Census 2011; DataMeet boundaries (CC BY 4.0, display only, not an official map). Delay's cost is estimated at 0.5-1.5% of GDP (eCourtsIndia blog, citing DAKSH); there is no official figure.